

## 26NNCV00802 26NNCV00802

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-10

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Case Number: 26NNCV00802 Hearing Date: July 10, 2026 Dept: A

DEMURRERS;

motions to strike

Los

Angeles Superior Court Case # 26NNCV00802

MP: (1) Defendants Oriternal Medical, LLC,

Xiangdong Zhang, and Wei Wu

(2) Defendant Xiangdong Zhang

(3) Defendant Wei Wu

RP: No opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at [email protected] or by telephone at (818) 260-8412.

## MOTIONS

### ON CALENDAR:

On April 7, 2026, Oriternal, Zhang, and Wu filed a Demurrer and Motion to Strike the Complaint; then on April 16, 2026, Zhang filed a Demurrer and Motion to Strike the Complaint, and Wu filed a Demurrer and Motion to Strike the Complaint. The Court notes that Oriternal Defendants' Demurrer/Motion to Strike and Zhang's Demurrer/Motion to Strike were originally scheduled for June 26, 2026. The motions were continued to July 10, 2026 to be heard concurrently with Wu's Demurrer/Motion to Strike.

On June 24, 2026, Plaintiffs filed a First Amended Complaint ("FAC").

### ANALYSIS:

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties. The time for responding to an amended pleading shall be computed from the date of service of the amended pleading."

(C.C.P. § 472(a).)

Based on the continued hearing date of July 10, 2026, the oppositions to the Demurrers and Motions to Strike were due by June 26, 2026. (The Court notes that the oppositions to Oriternal Defendants' and Zhang's motions would have been due by June 12, 2026 based on the original June 26, 2026 hearing date.) Plaintiffs filed the FAC on June 24, 2026, which is before the June 26, 2026 opposition due date. Thus, the Demurrers and Motions to Strike portions of the initial Complaint is moot as an amended pleading has been filed.

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### RULING:

In

the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

#### ORDER

(1)

Defendants Oriternal Medical, LLC, Xiangdong Zhang, and Wei Wu's Demurrer and Motion to Strike; (2) Defendant Xiangdong Zhang's Demurrer and Motion to Strike; and (3) Defendant Wei Wu's Demurrer and Motion to Strike came on regularly for hearing on July 10, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE DEMURRERS AND MOTIONS TO STRIKE TO THE INITIAL COMPLAINT ARE TAKEN OFF-CALENDAR AS MOOT IN LIGHT OF PLAINTIFFS' FILING OF THE FIRST AMENDED COMPLAINT.

defendant ORITERNAL MEDICAL, LLC TO GIVE NOTICE.

IT

IS SO ORDERED.